

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X
LILLIAN VARGAS AND LUIS VARGAS,

Plaintiffs,

-against-

THE CITY OF NEW YORK; SGT. DAVID GRIECO,
(Shield # 03830); P.O. JOHN DOE #1-12; and P.O. JANE
DOE #1-2; the individual defendants sued in their
individual and official capacities,Defendants.
----- X

Index No.

Purchased _____

Plaintiff designates Kings County as the
place of trialThe basis of the venue is where the tort
arose and where plaintiffs resideSUMMONS

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiffs' attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
February 7, 2018

Steven E. Lynch, Esq.

*Attorney for Plaintiffs*The Law Offices of Steven E. Lynch
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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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LILLIAN VARGAS AND LUIS VARGAS,

Index. No.

Plaintiffs,

VERIFIED COMPLAINT

-against-

Basis of Venue occurrence of
incident: 716 Williams Avenue,
Brooklyn, New York

THE CITY OF NEW YORK; SGT. DAVID GRIECO,
(Shield # 03830); P.O. JOHN DOE #1-12; and P.O. JANE
DOE #1-2; the individual defendants sued in their
individual and official capacities,

Defendants.

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LILLIAN VARGAS and LUIS VARGAS, by their attorney, Steven E. Lynch, Esq., for
their complaint allege as follows:

1. This is a civil rights, common law, and tort action in which Plaintiffs
Lillian Vargas and Luis Vargas seek relief for the violation of their rights secured by the laws of
the State of New York, New York State Constitution, 42 U.S.C. § 1983; and Fourth, Sixth, and
Fourteenth Amendments to the United States Constitution.

2. Plaintiffs' claims arise from an incident that occurred on or about January
31, 2017. During the incident, the City of New York, Sgt. David Grieco, P.O. John Doe #1-12,
and P.O. Jane Doe #1-2 of the New York City Police Department ("NYPD") subjected Plaintiffs
to, among other things, unlawful search and seizure, false arrest, false imprisonment, malicious
prosecution, fabricated evidence, the retention, supervision, training and instruction of
incompetent and unfit employees, and respondeat superior liability.

3. Plaintiffs seek compensatory and punitive damages from the individual
defendants, compensatory damages from the municipal defendant, declaratory relief, an award of

costs, attorney's fees pursuant to 42 U.S.C. § 1988, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

4. Within ninety (90) days of the incident alleged in this complaint, Plaintiffs served upon Defendant City of New York a Notice of Claim setting forth the name and post office address of the Plaintiffs, the nature of the claim, the time when, the place where and the manner in which the claim arose, and the items of damages or injuries claimed.

5. More than thirty (30) days have elapsed since Plaintiffs' demands and/or claims were presented to Defendant City of New York for adjustment and/or payment thereof, and the defendant has neglected and/or refused to make any adjustment and/or payment.

6. This action is being commenced within one year and ninety days of the date of the occurrence herein.

7. A 50-h Hearing was conducted on May 10, 2017.

8. Venue is proper in the Supreme Court of the State of New York, Kings County, because the acts in question occurred in the State of New York, Kings County, and the City of New York is subject to personal jurisdiction in Supreme Court of the State of New York, Kings County, and because the amount in recovery exceeds the jurisdictional levels of all lower courts.

PARTIES

9. Plaintiffs Lillian Vargas and Luis Vargas are Hispanic residents of the State of New York, and currently reside in Kings County.

10. At all times alleged herein, Defendant City of New York was a municipal corporation organized under the laws of the State of New York, which violated Plaintiffs' rights as described herein.

11. At all times alleged herein, Defendants Sgt. David Grieco, P.O. John Doe #1-12, and P.O. Jane Doe #1-2 were New York City Police Officers employed with the 75th Precinct, located in Kings County, New York or other as yet unknown NYPD assignment, who violated Plaintiffs' rights as described herein.

12. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

13. On January 31, 2017, at approximately 6:20 a.m., at and in the vicinity of 716 Williams Avenue, Brooklyn, New York, Sgt. David Grieco, P.O. John Doe #1-12, and P.O. Jane Doe #1-2, entered Plaintiffs' home, unlawfully arrested Plaintiffs without either consent, an arrest warrant, a search warrant, probable cause, or reasonable suspicion that Plaintiffs (or any third person) had committed a crime..

14. Prior to Plaintiffs' arrest, Plaintiffs, who are siblings, were asleep in their residence.

15. Plaintiffs were awoken when Sgt. David Grieco and approximately fourteen police officers broke down the door to their home and entered wearing masks and carrying shields.

16. Defendants yelled "nobody move" and began searching the Plaintiffs' home and asking where was the gun.

17. Defendants ransacked and damaged the apartment during their search and broke Plaintiffs' oxygen tank.

18. The Defendants did not display a search warrant to the Plaintiffs.

19. During their search, Defendants seized Plaintiff Lillian Vargas's prescription medication that was inside a properly labeled prescription bottle bearing her name.

20. Defendants arrested, handcuffed, transported Plaintiffs to the 75th Precinct for arrest processing, and arraigned in Brooklyn Criminal Court.

21. Plaintiffs were charged with Penal Law section 220.06 criminal possession of a controlled substance in the fifth degree and Penal Law section 220.03 criminal possession of a controlled substance in the seventh degree.

22. Plaintiffs' cases were dismissed after they provided a copy of Plaintiff Lillian Vargas's prescription to the District Attorney's Office.

GENERAL ALLEGATIONS

23. The individual defendants acted in concert committing the above-described illegal acts toward plaintiffs.

24. Plaintiffs did not violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above incidents.

25. At no time prior to, during or after the above incidents were the individual defendants provided with information, or in receipt of a credible or an objectively reasonable complaint from a third person, that Plaintiffs had violated any law, regulation, or administrative code; committed any criminal act; or acted in a suspicious or unlawful manner prior to or during the above incidents.

26. The Defendants acted under pretense and color of state law and within the scope of their employment. Said acts by said Defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said Defendants acted willfully, knowingly, and with the specific intent to deprive Plaintiffs of their rights.

27. As a direct and proximate result of Defendants' actions, Plaintiffs experienced personal and physical injuries, loss of liberty, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

28. Plaintiffs are entitled to receive punitive damages from the individual defendants because the individual defendants' actions were motivated by extreme recklessness and indifference to plaintiff's rights.

FIRST CLAIM FOR RELIEF

(For Unlawful Search Under New York Constitution Against the City of New York, Sgt. David Grieco, P.O. John Doe #1-12; and P.O. Jane Doe #1-2)

29. Plaintiffs incorporate the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

30. Defendants Sgt. David Grieco, P.O. John Doe #1-12; and P.O. Jane Doe #1-2 unlawfully entered and searched Plaintiffs' home without a warrant, probable cause, or consent.

31. Accordingly, the Defendants are liable to Plaintiffs for Defendants' unlawful search under the New York State Constitution Article I, § 12.

SECOND CLAIM FOR RELIEF

(For Unlawful Seizure Under New York Constitution Against the City of New York, Sgt. David Grieco, P.O. John Doe #1-12; and P.O. Jane Doe #1-2)

32. Plaintiffs incorporate the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

33. Defendants Sgt. David Grieco, P.O. John Doe #1-12; and P.O. Jane Doe #1-2 unlawfully seized Plaintiffs and Plaintiff Lillian Vargas's medication without a warrant, probable cause, or consent.

34. Plaintiff Luis Vargas suffered from infections on his wrists at the time of his arrest. Defendants' handcuffing of Mr. Vargas during his arrest caused him extreme pain and exacerbated the wounds on his wrists.

35. Accordingly, Defendants are liable to Plaintiffs for Defendants' unlawful seizure under the New York State Constitution Article I, § 12.

THIRD CLAIM FOR RELIEF

(For Intentional Infliction of Emotional Distress Against the City of New York Sgt. David Grieco, P.O. John Doe #1-12; and P.O. Jane Doe #1-2)

36. Plaintiffs incorporate the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

37. Defendants City of New York, Sgt. David Grieco, P.O. John Doe #1-12; and P.O. Jane Doe #1-2, intentionally inflicted emotional harm upon the Plaintiffs.

38. The Defendants' actions against the Plaintiffs were extreme and outrageous and caused Plaintiffs severe emotional distress.

39. Defendants the City of New York, Sgt. David Grieco, P.O. John Doe #1-12; and P.O. Jane Doe #1-2 breached a duty owed to Plaintiffs that either unreasonably endangered Plaintiffs' physical safety, or caused Plaintiffs to fear for their own safety.

40. Accordingly the City of New York, City of New York, Sgt. David Grieco, P.O. John Doe #1-12; and P.O. Jane Doe #1-2 under New York state law for intentional infliction of emotional distress upon Plaintiffs.

FOURTH CLAIM FOR RELIEF

(For Malicious Prosecution Against the City of New York, Sgt. David Grieco, P.O. John Doe #1-12; and P.O. Jane Doe #1-2)

41. Plaintiffs incorporate the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

42. Defendants initiated, commenced and continued a malicious prosecution against Plaintiffs.

43. Defendants caused Plaintiffs to be prosecuted without any probable cause until the charges were dismissed on or about February 3, 2017.

44. By virtue of the foregoing, the individual officer defendants maliciously prosecuted Plaintiffs in violation of the laws of the State of New York.

FIFTH CLAIM FOR RELIEF

(For False Arrest under State Law Against the City of New York, Sgt. David Grieco, P.O. John Doe #1-12; and P.O. Jane Doe #1-2)

45. Plaintiffs incorporate the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

46. As a result of Defendants' aforementioned conduct, the Plaintiffs were subjected to an illegal, improper, and false arrest. The Plaintiffs were taken into custody and caused to be falsely imprisoned, detained, confined, and incarcerated. In the above-mentioned actions, Defendants acted intentionally, willfully, with malice, and without probable cause, privilege or consent.

47. Plaintiffs were conscious of their confinement.

48. As a result of the foregoing, Plaintiffs' liberty was restricted in filthy and degrading conditions for an extended period of time, Plaintiffs were put in fear for their safety, were humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

49. Plaintiff Luis Vargas suffered from infections on his wrists at the time of his arrest. Defendants' handcuffing of Mr. Vargas during his arrest caused him extreme pain and exacerbated the wounds on his wrists.

50. By virtue of the foregoing, the Defendants deprived the Plaintiffs of their rights under the law of the State of New York.

SIXTH CLAIM FOR RELIEF

(For Respondeat Superior Against the City of New York)

51. Plaintiffs incorporate the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

52. The individual defendants, Sgt. David Grieco, P.O. John Doe #1-12; and P.O. Jane Doe #1-2, were acting within the scope of their employment as New York City Police Officers when they committed the above described acts against the Plaintiffs.

53. Accordingly, the City of New York is therefore vicariously liable under New York State law for the aforesaid torts.

SEVENTH CLAIM FOR RELIEF

*42 U.S.C. § 1983 - Fourth and Fourteenth Amendment Violation
for False Arrest*

(Against the Individual Officer Defendants)

54. Plaintiffs incorporate the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

55. As a result of Defendants' aforementioned conduct, the Plaintiffs were

subjected to an illegal, improper, and false arrest. The Plaintiffs were taken into custody and caused to be falsely imprisoned, detained, confined, and incarcerated. In the above-mentioned actions, Defendants acted intentionally, willfully, with malice, and without probable cause, privilege or consent.

56. Plaintiffs were conscious of their confinement.

57. As a result of the foregoing, Plaintiffs' liberty was restricted in filthy and degrading conditions for an extended period of time, Plaintiffs were put in fear for their safety, were humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

58. Plaintiff Luis Vargas suffered from infections on his wrists at the time of his arrest. Defendants' handcuffing of Mr. Vargas during his arrest caused him extreme pain and exacerbated the wounds on his wrists.

59. By virtue of the foregoing, the Defendants deprived the Plaintiffs of their Fourth Amendment rights under the United States Constitution to be free from unreasonable seizures of their person and are liable to Plaintiffs under 42 U.S.C. §1983.

EIGHT CLAIM FOR RELIEF

*42 U.S.C. § 1983-Fifth and Fourteenth Amendment Violations for Fabrication of Evidence
(Against the Individual Officer Defendants)*

60. Plaintiffs incorporate the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

61. The Defendants created false evidence against the Plaintiffs and drafted or signed sworn criminal complaints and false police reports.

62. The Defendants forwarded to prosecutors fabricated and false evidence that was likely to influence a jury's decision.

63. The Defendants knowingly and intentionally provided false evidence against Plaintiffs in legal proceedings.

64. By virtue of the foregoing, the Defendants deprived the Plaintiffs of their Fifth and Fourteenth Amendment rights under the United States Constitution to due process and to a fair trial and are liable to Plaintiffs under 42 U.S.C. §1983.

NINTH CLAIM FOR RELIEF

Municipal Liability
(Against Defendant City)

65. Plaintiffs incorporate the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

66. The City's continuing failure to deter police misconduct has led to ever increasing numbers of lawsuits for repeated misconduct by the same officers, same units, and same precincts. In the fiscal year of 2012, there were 2,004 tort cases commenced against the New York City Police Department, up from 1,425 tort cases commenced for the fiscal year of 2008.¹ The City of New York has paid at least \$80 million for torts against the New York City Police Department since the fiscal year of 2008, peaking in fiscal year of 2009 when it paid out more than \$117 million.¹ In the past ten years, the City of New York has paid nearly a billion dollars on lawsuits brought against the NYPD.²

¹ Fiscal 2013 Preliminary Mayor's Management Report for the New York City Police Department, available at www.nyc.gov/html/ops/downloads/pdf/mmr0912/nypd.pdf, see page 5, last visited on January 24, 2014.

² "NYPD gives quite the payday; AP report reveals police have doled out \$1B to resolve lawsuits," by Associated Press Writers Colleen Long and Jennifer Peltz via Daily News wire Report, <http://www.nydailynews.com/new-york/nypd-payday-ap-report-reveals-police-dolled-1b-resolve-lawsuits-article-1.189671>, October 15, 2010 last visited on January 27, 2014.

67. The widely held assumption is that civil rights lawsuits deter police misconduct. “The purpose of § 1983 is to deter state actors from using the badge of their authority to deprive individuals of their federally guaranteed rights and to provide relief to victims if such deterrence fails.” Wyatt v. Cole, 504 U.S. 158, 161, (1992) citing Carey v. Phipps, 435 U.S. 247, 254-257, (1978). “As far as we know, civil liability is an effective deterrent [to civil rights violations], as we have assumed it is in other contexts.” See Hudson v. Michigan 547 U.S. 586, 598 (2006) citing Correctional Services Corp. v. Malesko, 534 U.S. 61, 70 (2001) and Nix v. Williams, 467 U.S. 431, 446, (1984). “It is almost axiomatic that the threat of damages has a deterrent effect (citation omitted) surely particularly so when the individual official faces personal financial liability.” Carlson v. Green, 446 U.S. 14, 21, (1980), citing Imbler v. Pachtman, 424 U.S. 409, 442, and footnote 6 (1976).

68. However, the City of New York has isolated NYPD officers like defendant police officers from accountability for civil rights lawsuits by indemnifying officers who violate the constitutional rights of citizens, and, as a result, is preventing civil rights lawsuits from having any deterrent value to the City, the NYPD or its officers. Civil rights lawsuits against police officers have no impact on the officers’ careers, regardless of the expense to the City of the officers’ lawsuit liability, even after multiple lawsuits. In 1999, former Comptroller Alan Hevesi reported that there was a “a total disconnect” between the settlements of even substantial civil claims and police department action against officers.³ This “total disconnect”

³ Bob Hennelly’s WNYC report, “Amid City Budget Crisis, New Scrutiny on Millions in NYPD Settlements” from June 8, 2011: <http://www.wnyc.org/articles/its-free-country/2011/jun/08/amid-city-budget-grappling-new-scrutiny-millions-nypd-settlements/>, last visited on January 27, 2014.

between officers' liability and NYPD discipline, results in a system where the City pays vast sums to settle false arrests, but the NYPD does nothing to investigate nor address the underlying causes of such false arrests or officers who have incurred large sums of civil rights liability.

69. The City Council, Government Operations Committee, despite being alerted at a City Council hearing on December 12, 2009, and on other occasions, to the obvious problem of officers and precincts with a disproportionate responsibility for civil rights lawsuit liability, has failed to take action to hold officers or precincts accountable. It has likewise failed to hold an investigative hearing into what extent specific officers, units and precincts are disproportionately responsible for New York City civil rights lawsuits.

70. Nevertheless, the City has repeatedly resisted attempts to catalog even basic information gleaned from civil rights lawsuits that could improve training, leadership, supervision, and discipline in the NYPD. The City's deliberate indifference towards the contents of civil rights litigation, individual officers repeatedly named in lawsuits, incidents repeatedly occurring in the same division, and patterns of misconduct that arise in civil rights litigation has caused the constitutional violations of excessive force and false arrest suffered by the plaintiff.

71. Further, the City has no procedure to notify individual officers or their supervisors of unfavorable judicial review of their conduct or to calculate the total liability of an individual officer or of a precinct. Without this notification, improper search and seizure practices and incredible testimony go uncorrected, problematic supervision or leadership at the precinct level goes ignored, and repeated misconduct by individual officers goes unaccounted for. Even occasional judicial findings that officers have testified incredibly are not reported routinely to the police department or any oversight agencies.

72. All of the aforementioned has created a climate where police officers and detectives lie to prosecutors and in police paperwork and charging instruments, and testify falsely, with no fear of reprisal. "Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department. Despite numerous inquiries by commissions and strong reported efforts by the present administration-through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations, and strong disciplinary action within the department-there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged." See Colon v. City of New York, et al, 2009 WL 4263362 (E.D.N.Y.) (Weinstein, J.).

73. In Floyd v. City of New York, 08-cv-01034-SAS-HBP, Judge Scheindlin found that the City acted with "deliberate indifference toward the NYPD's practice of making unconstitutional stops and conducting unconstitutional frisks" and adopted "a policy of indirect racial profiling by targeting racially defined groups for stops based on local crime suspect data." (Opinion and Order, dated August 12, 2013, P.13).

74. The City is aware that all of the aforementioned has resulted in violations of citizens' constitutional rights. Despite such notice, the City has failed to take corrective action. This failure and these policies caused the officers in the present case to violate plaintiff's civil rights, without fear of reprisal.

75. Plaintiffs have been damaged as a result of the deliberate indifference of the Defendant City.

WHEREFORE, Plaintiffs demand a jury trial and judgment and compensatory damages, individually and/or collectively in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction as to the above-stated cause of action against all defendants; punitive damages in an amount to be determined at trial as and for the above-stated causes of action against the individual defendants; together with costs and disbursements of this action.

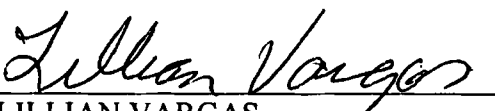
Dated: New York, New York
February 7, 2018



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Attorney for Plaintiffs
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New York, New York 10006
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steven@stevenelynych.com

VERIFICATION

I, LILLIAN VARGAS, state under the oath, that I am the deponent and a plaintiff in this action, and that the pleading is true to the knowledge of the deponent, except as to matters, alleged on information and belief, and that as to those matters I believe it to be true.


LILLIAN VARGAS

STATE OF NEW YORK)

: ss:

COUNTY OF KINGS)

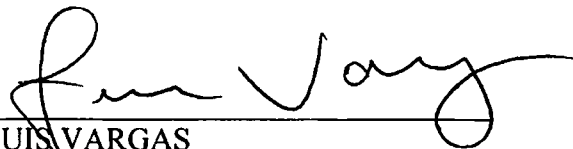
On the 7th day of February, 2018, before me personally came and appeared LILLIAN VARGAS to me known and known to me to be the individual described in and who executed the foregoing instrument, and who duly acknowledged to me that he executed the same.


NOTARY PUBLIC

STEVEN E. LYNCH
NOTARY PUBLIC, State of New York
No. 02LY6261890
Qualified in Kings County
Commission Expires May 29, 2018/20

VERIFICATION

I, LUIS VARGAS, state under the oath, that I am the deponent and a plaintiff in this action, and that the pleading is true to the knowledge of the deponent, except as to matters, alleged on information and belief, and that as to those matters I believe it to be true.



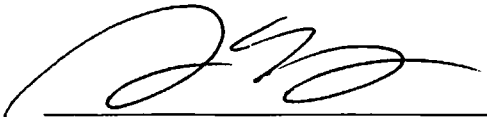
LUIS VARGAS

STATE OF NEW YORK)

: ss:

COUNTY OF KINGS)

On the 7th day of February, 2018, before me personally came and appeared LUIS VARGAS to me known and known to me to be the individual described in and who executed the foregoing instrument, and who duly acknowledged to me that he executed the same.



NOTARY PUBLIC

STEVEN E. LYNCH
NOTARY PUBLIC, State of New York
No. 02LY6261890
Qualified in Kings County
Commission Expires May 29, 2018/20